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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
15/764,786	09/18/2018	Wolfgang BECHTER	ZUM-PT004	1310

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EXAMINER
DIAZ, JOSE

ART UNIT	PAPER NUMBER
2879	

NOTIFICATION DATE	DELIVERY MODE
05/08/2019	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

eoffice@volpe-koenig.com

Office Action Summary	Application No. 15/764,786	Applicant(s) BECHTER et al.	
	Examiner JOSE M DIAZ	Art Unit 2879	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 18 September 2018.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-14 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-14 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 18 September 2018 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☑ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☑ All b)☐ Some** c)☐ None of the:

1.☑ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

> A person shall be entitled to a patent unless –
>
> (a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale or otherwise available to the public before the effective filing date of the claimed invention.

Claims 1, 3-4, and 6-14 are rejected under 35 U.S.C. 102(a)(1) as being anticipated by **Szymanek (4891737, cited by the applicant), Szymanek hereinafter**.

Regarding **claim 1**, Szymanek discloses a cover (11) for covering a light outlet opening delimited by a support rail (25, col. 2, lines 55-56, fig. 2) of a lighting strip system (light fixture), the support rail (25) configured to receive a luminaire having a light source (col. 2, line 64) for producing light, wherein the cover (11) has a holding device (28, col. 3, line 4 for holding at least one optically active element (14, col. 2, lines 29-30, fig. 1) for influencing the light.

Regarding **claim 3**, Szymanek discloses a plate-shaped bearing region (26, col. 2, lines 33-34, fig. 3) by means of which forms a particularly substantially planar bearing surface (30, col. 2, lines 41-42, fig. 2) for bearing the element (14) is formed.

Regarding **claim 4**, Szymanek discloses that the cover (11) is configured to extend along a longitudinal axis and has a connection region (18, col. 2, line 62, fig. 2)

for connecting to the support rail (25) which abuts the bearing region (26) on one side and extends parallel to the longitudinal axis, and wherein the holding device (28) comprises a holding lip (24, col. 2, lines 40-41) formed on the connection region (18).

Regarding **claim 6**, Szymanek discloses that the holding lip (24) is configured directed at the bearing surface (30) (see fig. 2).

Regarding **claim 7**, Szymanek discloses that the cover (11) has a_symmetrical design in respect of a central plane (see fig. 1) extending parallel to the longitudinal axis and penetrating the bearing region (26), so that the cover (11) has a further connection region (16, col. 2, line 50, fig. 2) with a corresponding further holding lip (20, col. 2, line 68), said connection region being configured symmetrically to the aforementioned connection region (18).

Regarding **claim 8**, Szymanek discloses that the cover (11) is configured as a profile part (see fig. 1).

Regarding **claim 9**, the claim limitation of "wherein the cover is produced using a two- component injection-molding method" is interpreted as product by process claim limitation. Even though product by process claims are limited by and defined by the process, determination of patentability is based on the product itself. Patentability of a claim to a product does not rest merely on the difference in the method by which the product is made (MPEP 2113).

Regarding **claim 10**, Szymanek discloses that the cover (11) is configured in such a manner that the at least one optically active element (14) can be inserted or introduced into the cover (11) for an anticipated connection thereto (see fig. 1).

Regarding **claim 11**, Szymanek discloses and arrangement comprising - a cover (11) according to claim 1 and at least one optically active element (14), wherein the at least one optically active element (14) is held on the cover (11) by the holding device (28).

Regarding **claim 12**, Szymanek discloses that the optically active element (14) is a film, in particular a film which has an optically diffusing or light-directing effect (col. 2, lines 29-30).

Regarding **claim 13**, Szymanek discloses that the cover (11) is configured to extend along a longitudinal axis and has a connection region (18) for connecting to the support rail (25) which abuts the bearing region (26) on one side and extends parallel to the longitudinal axis, and wherein the holding device (28) comprises a holding lip (24) formed on the connection region (18) and wherein the cover (11), further comprises a plate-shaped bearing region (26) which forms a substantially planar bearing surface (30) for bearing the element (14); the cover (11) having a symmetrical design in respect of a central plane (see fig. 1) extending parallel to the longitudinal axis and penetrating the bearing region (26), so that the cover (11) has a further connection region (16) with a corresponding further holding lip (20), said connection region being configured symmetrically to the aforementioned connection region (18) and wherein the optically active element (14) is arranged lying on the bearing surface (30) and is positioned on two opposite sides by the holding lip (24) and the further holding lip (20) or arranged pressed against the bearing surface (30).

Regarding **claim 14**, Szymanek discloses a lighting strip system (light fixture) comprising - a support rail (25) extending along a longitudinal axis, - an elongate

luminaire (as implied on fig .1) which is arranged in the support rail (25), wherein the luminaire has a light source (col. 2, line 64) for producing light, wherein a light outlet opening through which the light passes is delimited by the support rail (25), an elongate, light-permeable cover (11) extending along the longitudinal axis, which cover (11) is arranged covering the light outlet opening, wherein the cover (11) is configured according to claim 1.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102 of this title, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

Claims 2 and 5 are rejected under 35 U.S.C. 103 as being unpatentable over **Szymanek (4891737, cited by the applicant), Szymanek**, in view of **Ladstaetter (20160069521), Ladstaetter hereinafter**.

Regarding **claim 2**, Szymanek discloses the claimed invention according to claim 1.

However, Szymanek fails to exemplify that the cover is configured such that it can be rolled up into a roll.

In the same field of endeavor, Ladstaetter discloses a cover (20, ¶ [21], fig. 4) that is configured such that it can be rolled up into a roll, so that even an extremely long

light cover can be transported in a simple manner to the usage location and shortened there to the required length if necessary.

Therefore, it would have been obvious to a person of ordinary skill in the art at the time of effective filing of the claimed invention to use a cover (20, ¶ [21], fig. 4) that is configured such that it can be rolled up into a roll as taught by Ladstaetter in the device of Szymanek, so that even an extremely long light cover can be transported in a simple manner to the usage location and shortened there to the required length if necessary.

Regarding **claim 5**, Szymanek discloses the claimed invention according to claim 1.

However, Szymanek fails to exemplify that the connection region is made of a more flexible material that is more flexible than a material making up the bearing region.

In the same field of endeavor, Ladstaetter discloses a connection region (25, ¶ [26], fig. 3) that is made of a more flexible material that is more flexible than a material making up a bearing region (21), in order to provide a very good seal can be achieved between cover and light housing.

Therefore, it would have been obvious to a person of ordinary skill in the art at the time of effective filing of the claimed invention to provide a connection region that is made of a more flexible material that is more flexible than a material making up a bearing region as taught by Ladstaetter in the device of Szymanek, in order to provide a very good seal can be achieved between cover and light housing.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to JOSE M. DIAZ whose telephone number is (571)272-9822. The examiner can normally be reached on Monday-Friday 8:00-4:00.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Georgia Epps can be reached on (571) 272-2328. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a

USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/JOSE M DIAZ/
Examiner, Art Unit 2879

/GEORGIA Y EPPS/
Supervisory Patent Examiner, Art Unit 2878